

26TRCV01103 26TRCV01103

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-05

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Case Number: 26TRCV01103 Hearing Date: August 5, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – August 5, 2026

Calendar No.

PROCEEDINGS

Maria

Austin v. SME Investments, LLC, et al.

26TRCV01103

1. SME Investments, LLC, et al.'s Demurrer to Complaint

2.

SME Investments,

LLC, et al.'s Motion to Strike Portions of Complaint

TENTATIVE RULING

SME Investments, LLC, et al.'s Demurrer to Complaint

is sustained with 20 days leave to amend.

SME Investments, LLC, et al.'s Motion to Strike

Portions of Complaint is moot, in part, and granted with 20 days leave to amend, in part.

Background

Plaintiff filed the Complaint on March 26, 2026. Plaintiff

alleges the following facts. Plaintiff resides in her own mobile home and

leases a mobile home space at property located at 20550 Earl Street Space 43, Torrance, California 90503.

The property's common areas suffer from numerous habitability problems

including plumbing and sewage issues that have caused sewage backups and

damages to Plaintiff. Plaintiff alleges the following causes of action: 1.

Breach of Implied Warranty of Habitability; 2. Tortious Breach of Implied

Warranty of Habitability; 3. Negligence 4. IIED; 5. Violation of B&P §

17200; 6. Violation of CC § 798 se seq.

Meet and Confer

Defendants set forth meet and confer

declarations in sufficient compliance with CCP § 430.41 and CCP § 435.5. (Decls. Robert D. Goldberg.)

Demurrer

A demurrer tests the sufficiency of a

complaint as a matter of law and raises only questions of law. (Schmidt v.

Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint,

the court must assume the truth of (1) the properly pleaded factual

allegations; (2) facts that can be reasonably inferred from those expressly

pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39

Cal.3d 311, 318.) The Court may not

consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th

634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the

plaintiff must show that the complaint alleges facts sufficient to establish

every element of each cause of action. (Rakestraw

v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts

sufficient to constitute a cause of action, courts should sustain the demurrer.

(C.C.P., § 430.10(e); Zelig v. County

of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts

of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) "Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure § 430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendants SME

Investments, LLC and Metropolitan Property Services LLC demur to the first, second, and fourth causes of action for failure to state sufficient facts to state a cause of action. CCP § 430.10(e).

First Cause of

Action for Breach of the Implied Warranty of Habitability

Second Cause of

Action for Tortious Breach of the Implied Warranty of Habitability

Defendants' demurrer

to the first and second causes of action is sustained with 20 days leave to amend. Plaintiff fails to state sufficient to state the causes of action.

"The elements of [a cause of action for breach of the implied warranty of habitability] are the existence of a material defective condition affecting the premises' habitability, notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages." Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1297.

"The lessor of a building

intended for the occupation of human beings must, in the absence of an agreement to the contrary, put it into a condition fit for such occupation, and repair all subsequent dilapidations thereof, which render it untenable, except such as are mentioned in section nineteen hundred and twenty-nine." Civ.

Code, § 1941 (emphasis added).

Civ. Code, § 1941.1 states in relevant part:

“(a) A dwelling

shall be deemed untenable for purposes of Section 1941 if it substantially lacks any of the following affirmative standard characteristics or is a residential unit described in Section 17920.3 or 17920.10 of the Health and Safety Code:

(1) Effective

waterproofing and weather protection of roof and exterior walls, including unbroken windows and doors.

(2) Plumbing or gas

facilities that conformed to applicable law in effect at the time of installation, maintained in good working order.

(3) A water supply

approved under applicable law that is under the control of the tenant, capable of producing hot and cold running water, or a system that is under the control of the landlord, that produces hot and cold running water, furnished to appropriate fixtures, and connected to a sewage disposal system approved under applicable law.

(4) Heating

facilities that conformed with applicable law at the time of installation, maintained in good working order.

(5) Electrical

lighting, with wiring and electrical equipment that conformed with applicable law at the time of installation, maintained in good working order.

(6) Building,

grounds, and appurtenances at the time of the commencement of the lease or rental agreement, and all areas under control of the landlord, kept in every part clean, sanitary, and free from all accumulations of debris, filth, rubbish, garbage, rodents, and vermin.”

Civ. Code, § 1940(c)

states: “‘Dwelling unit’ means a structure or the part of a structure that is used as a home, residence, or sleeping place by one person who maintains a household or by two or more persons who maintain a common household.”

“[E]very lease of a dwelling contains an implied warranty of habitability.” Peterson v. Superior Court (1995) 10 Cal.4th 1185, 1203 (emphasis added).

Defendants’ demurrer

to the first and second causes of action is based solely on the contention that the breach of the implied warranty of habitability does not apply to a lease of a rental space at a mobile home park. As noted above, the statutory framework, as well as applicable case law, applies the implied warranty of habitability to a lease of a dwelling. Here, the lease was merely to lease a space in a mobile home park as opposed to a dwelling. Plaintiff owns the mobile home which constitutes her dwelling. Thus, when a tenant leases only a space or lot, the landlord is not leasing a building or a structure. The space does not meet the statutory definition of a “dwelling unit.”

Additionally, mobile

home park tenancies are governed by a separate statutory scheme – the Mobilehome Residency Law (Civ. Code 798 et seq.) and the California Recreational Vehicle Park Occupancy Law (Civil Code §§ 799.20 et seq.) Nothing in the statutory framework of these laws appears to incorporate the statutory scheme or case law governing the implied warranty of habitability. In addition, the Court notes that Defendant did not demur to the sixth cause of action for Violation of CC § 798 et seq. Thus, that cause of action is not currently challenged by this demurrer.

Thus, no persuasive

authority was submitted to show that the implied warranty of habitability applies to a mobile home space in a mobile home park. Therefore, the demurrer to the first and second causes of action is sustained with 20 days leave to amend.

Fourth Cause of Action for IIED

Defendants’ demurrer to the fourth

cause of action is sustained with 20 days leave to amend. Plaintiff fails to state facts sufficient to state a cause of action.

"A cause of action for IIED requires proof of: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress." *Crouch v. Trinity Christian Center of Santa Ana, Inc.* (2019) 39 Cal.App.5th 995, 1007.

"[I]t is clear that the availability of a remedy for breach of implied warranty of habitability does not preclude a tenant from suing his landlord for intentional infliction of mental distress if the landlord's acts are extreme and outrageous and result in severe mental distress." *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 921. "Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." *Id.*

Plaintiff failed to set forth facts to support the elements of extreme and outrageous conduct, intent or reckless disregard, and proximate causation. Plaintiff alleges that a plumbing explosion occurred on October 4, but that Defendants did not send someone until October 7. While Plaintiff does not specifically allege the timeframe in which the issue was repaired, the bulk of the allegations that follow deal with issues related to relocation expenses and fee disputes between the parties. These facts are not sufficient to show that Defendants' conduct was extreme and outrageous. There are no facts alleged that Defendants were aware that Plaintiff was susceptible to emotional distress and acted unreasonably knowing that severe emotional distress would occur.

Plaintiff alleges "upon information and belief" that there were previous problems with the plumbing for months. (Complaint, ¶ 12). "[A party] may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true and thus a pleading made on information and belief is insufficient if it merely assert[s] the facts so alleged without alleging such information that lead[s] [the plaintiff] to believe that the allegations are

true.” *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158–1159 (internal citations and quotations are omitted; emphasis in original.) No facts are alleged to support the matters set forth on information and belief. Further, even had such facts been alleged, the bare allegations above are not sufficient to demonstrate extreme and outrageous conduct.

Thus, Plaintiff has not adequately set forth facts to support the elements of extreme and outrageous conduct, intent or reckless disregard, and proximate causation. Plaintiff has not alleged sufficient facts to show that Defendants abused a position of power, or, that Defendants knew that Plaintiff was susceptible to injuries through emotional distress, or, that Defendants acted intentionally or unreasonably knowing that it would likely cause emotional distress. Plaintiff failed to allege adequate facts to show that Defendants had knowledge of Plaintiff’s susceptibility to emotional distress and that they acted unreasonably knowing that emotional distress would occur from Defendant’s actions.

Therefore, the demurrer to the fourth cause of action is sustained with 20 days leave to amend.

Motion
to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. CCP § 436(a). The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. CCP § 436(b). The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. CCP § 436. The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP § 437.

Defendants move to strike 9 items (the court notes that the last two items are mismarked as items 1 and 2). The items constitute portions of paragraphs 34, 36 to 38, 44, 46 to 48, and prayer for relief paragraphs 62, 65, and 68.

As to paragraphs 34, 36 to 38, 46 to 48, 62, and 68, the motion is moot upon the order sustaining the demurrer to the second and fourth causes of action.

As to the remaining items sought to be stricken, paragraphs 44 and 65, the motion is granted with 20 days leave to amend.

Civ. Code, § 3294 states, in relevant part:

“(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.”

Civ. Code, § 3294(c) states:

“As used in this section, the following definitions shall apply:

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of

that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury."

"[I]t is clear that the availability of a remedy for breach of implied warranty of habitability does not preclude a tenant from suing his landlord for intentional infliction of mental distress if the landlord's acts are extreme and outrageous and result in severe mental distress." *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 921. "Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." *Id.* "[I]f the tenant wrongfully evicted elects to sue in tort, damages may be awarded for mental anguish and pain or physical injury; exemplary damages may also be recovered when the landlord's conduct justifies the award[.]" *Id.* at 926.

Plaintiff has failed to set forth specific facts to support the elements of malice, oppression, or fraud. As noted above, the Complaint does contain allegations which are sufficient to show that Defendants acted despicably with a willful and conscious disregard of the rights or safety of others or acted despicably subjecting Plaintiff to cruel and unjust hardship. The allegations are conclusory as to whether Defendants acted willfully, maliciously, intentionally, and/or recklessly to support Plaintiff's allegations of punitive damages.

Therefore, the motion to strike is granted with 20 days leave to amend as to the portions of paragraphs 44 and 65 sought to be stricken.

Defendants are ordered to give notice of this ruling.